

8. S-CV-0050671 Bente, Jennifer v. Granite Wellness Centers

Motion for Final Approval

The unopposed motion is granted. The court has broad discretion to determine whether a class action settlement is fair, adequate, and reasonable. (*In re Cellphone Fee Termination Cases* (2010) 186 Cal.App.4th 1380, 1389.) When reviewing the fairness of the settlement, the court is to give due regard to the parties' agreement, ensuring that the agreement is not a product of fraud, overreaching parties, or collusion and that the settlement, as a whole, is fair, reasonable, and adequate. (*7-Eleven Owners for Fair Franchising v. Southland Corp.* (2000) 85 Cal.App.4th 1135, 1145.) A presumption of fairness exists where: (1) the settlement was reached through arms-length bargaining; (2) the investigation and discovery were sufficient to allow class counsel and the court to act intelligently; (3) class counsel is experienced in similar litigation; and (4) there is a small percentage of objectors. (*Ibid.*)

The court has carefully reviewed and considered the class action settlement agreement and plaintiff's moving papers and declarations submitted in support thereof, including the supplemental declarations of Tim Perng filed April 6, 2026 and May 27, 2026. The court determines a sufficient showing has been made that the settlement, the attorneys' fees, costs, and the service award is fair, adequate, and reasonable.

The court grants final approval of the class action settlement and approves the attorneys' fees in the amount of \$241,425, costs in the amount of \$13,100.95, service awards of \$2,000 for each of the five plaintiffs for a total of \$10,000, and \$74,098.15 in settlement administration costs.

The court retains jurisdiction over the parties to enforce the terms of the judgment. (Cal. Rules of Court, rule 3.769, subd. (h).)

The court schedules this matter for a final accounting hearing on **November 17, 2026 at 8:30 a.m. in Department 32**. Plaintiff shall file and serve a final accounting status report by no later than November 3, 2026.

Motion for Attorneys' Fees, Costs, and Service Award

The unopposed motion for attorneys' fees, costs, and service award is granted as noted above. Attorneys' fees are awarded in the amount of \$241,425, costs are awarded in the amount of \$13,100.95, and service awards of \$2,000 are awarded for each of the five plaintiffs for a total of \$10,000.